

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2024PRDE030694: IN THE PATRICIA EILEEN BARRY

08/06/2026 in Department J6

Account and Report First and Final

Petitioner purchased a car from the estate, without first petitioning the Court for authority to do so. Because the executor lacked authority to make the purchase under the Code, the notice of proposed action procedure was not available to her. (Prob. Code, §§ 9880 et seq., § 10501, subd. (a)(5), 10580, subd. (a).) The Court will approve the sale retroactively, but admonishes counsel to discuss such issues in the petition for final distribution rather than ignoring them.

Proceeds from the sale of the car to Petitioner is entered as a receipt. It should be entered in a schedule for change in the form of assets.

No explanations are provided regarding the \$124.28 deposited on 12/8/25 for a US Savings Bond and the \$8,161.61 deposited on 5/2/25 for “sale of stock.” Bonds or stock were not part of the I&A.

Petitioner reimbursed herself \$100 for “dog boarding.” The petition does not mention any dog owned by the decedent. Explanation?

The property on hand at ending still lists the car that Petitioner purchased.

Receipts include \$865.24 in “escrow refund.” This appears to be a return of disbursement, not true income. Receipts also include the \$7,000 advanced by Petitioner and then self-reimbursed. Again, the \$7,000 does not constitute true income. The sale proceeds of \$500 from sale of the car to Petitioner is a change in the form of assets and not income. The nature of the proceeds from the “sale of stock” and the US Savings Bond deposit remain to be disclosed. Fees cannot be calculated until the information is provided.

Petitioner is directed to serve and file a verified supplement that addresses the foregoing issues.